



MAHURA SERVICES SDN. BHD

(868307-H)

Your Ref. :

Our Ref. :

WITHOUT PREJUDICE

Date :

TPBI Claims Department
Takaful Ikhlas General Berhad,
5th Floor, No, Bangunan Malaysian Re,
17, Lorong Dungun, Wilayah Persekutuan,
50490 Kuala Lumpur.

Attn: Cik. Nurul Hawa Nazierah Binti Sabtu

Dear Sirs,

INTERIM / FINAL REPORT **THIRD PARTY BODILY INJURY CLAIM**

Date of Instruction	:	
Claim Number	:	
Policy No. & Period of Cover	:	0000000000000000 (Comprehensive) From: 00/00/0000 to 00/00/0000
Participant's / Insured's Vehicle	:	A 2013, BMW 528i motorcar bearing registration number <u>ABC 1234.</u>
Participant / Insured	:	
Participant Driver /Insured Driver	:	
Relationship Between Participant & Participant Driver	:	Spouse / Friends / Siblings / Not Related to the Participant
Day, Date & Time of Accident	:	On Monday 28/08/2023 at about 08.30am.
Location of Accident	:	Along Jalan Meru Tambahan at the junction to Jalan Meranti Bunga 1, Meru, Klang, Selangor.
Third Party(s) Vehicle	:	A 2020 model Yamaha Y15ZR motorcycle bearing registration number <u>DEF 5678.</u>

Third Party(s) Involved

:

Police Findings

: The Participant was compounded under Rule 10 LN 166/59 for this accident with a maximum compound fine of RM300.00 for the offence.

The matter was investigated under Section 41 (1) (A) RTA 1987. (Please see our comments under police enquiries).

The matter which has been classified under Section 43 (1) RTA 1987 and is still "Under Investigation".

The insured driver was charged under Section 48 RTA 1987 and fined RM300.00 for the offence of posing obstruction.

The Investigating police officer refrained from comments on the outcome of Police Investigation.

The outcome of police investigation was not released to us. We were advised that we are ineligible for the information on the outcome and that the same would only be released to the Solicitors.

The Participant confirms that he was compounded by the Police Investigating Officer of this case and that he has settled the fine at RM250.00.

The matter is still under Investigation with no formal classification of police outcome.

The matter has been classified as "R.T.I." (Refer to Insurer) / "R.T.M." (Refer to Magistrate)

The matter has been classified as 'NFA' (No Further Action)/KUS (Kemas Untuk Simpanan).

Negligence

: Appears to be adverse against the Participant / Third party rider or Please refer to the header of "Liability"

INTRODUCTION

We thank you for this case assigned to us on **1ST September 2023**. In accordance with your instructions, we have conducted inquiries into this accident which occurred as in the information summarized above.

Having completed our inquiries and investigation into the accident, we would report on the case as follows: -

Details of our investigation are as follows:

THE PARTICIPANT / INSURED

Name :

Age (*at the time of accident*) :

NRIC No. :

Marital Status :

Address :

Telephone No. :

Occupation (*at the time of accident*) :

Employer (*at the time of accident*) :

Remarks:

Communication with the Participant or Insured: During a phone conversation identified the Participant driver, Abu bin Bakar, as his working colleague. He informed us that on the material day, Participant driver drove the covered vehicle and he has his permission to operate it.

The Participant further disclosed to us that the covered vehicle was damaged on the frontal section in the accident. We managed to secure the captions of his NRIC and Driving License and the same are attached below.

Captions of the Participant / Insured's NRIC and Driving License

Front portion of NRIC and Driving License	Rear portion of NRIC and Driving License
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Must crop the NRIC & Driving license with accurate size in report.

THE PARTICIPANT DRIVER / INSURED DRIVER

Name :

Age (*at the material time of accident*) :

NRIC No. :

Marital Status :

Address :

Telephone No. :

Occupation (*at the material time of accident*) :

Employer (*at the material time of accident*) :

Telephone No. :

Email Address :

Present Occupation :

Present Employer :

Telephone No. :

Driving License No. :

Class(s) Covered :

Validity : From 00/00/0000 to 00/00/0000

Driving Experience :

Endorsement :

Injuries Sustained : He did not sustain any injury in this accident under review.

Hospitalization :

Cross-Claim : Yes / None as advised

Remarks

The Participant / Insured informed us that he has engaged the services of M/s. Burhan & Co addressed as 1564-L1, Wisma Burhan, Jalan Kota, 05000, Alor Setar, Kedah to file a cross claim against the insurer of the Third party motorcycle with regards to this accident under review.

Captions of the Participant Driver's / Insured Driver's NRIC and Driving License

Front portion of NRIC and Driving License	Rear portion of NRIC and Driving License
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Must crop the NRIC & Driving license with accurate size in report.

Captions of the Participant Driver's/ Insured Driver Mr. Abu Bin Bakar

Participant Driver's Photograph	Photograph while Participant / Insured Driver signed written statement
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Must take 2 photos of Participant Driver /Insured Driver, while he /she signed the statement and another photo of Participant Driver / Insured Driver.

Captions of the Participant Driver's / Insured Driver's Injuries

Elaborate and circle the injuries (Ex: Residual scars on his head)	Elaborate and circle the injuries (Ex: Visible scar on his left big toe)
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PARTICULARS OF PARTICIPANT'S / INSURED'S VEHICLE**Vehicle and Ownership Details**

Registered Owner	:	
Vehicle Registration No.	:	
Make & Model	:	A 2023, Proton Wira 1.3 (Manual) motorcar
Engine No.	:	
Chassis No.	:	
Assembly Type	:	
Cubic Capacity	:	
Color of Vehicle	:	
Manufacture Year	:	
Original Date Of Registration	:	
Registration Card No.	:	
Usage Of Vehicle	:	

A copy of the JPJ search extract on the Covered motorcar is enclosed under **Appendix A.**

Captions of Registration Card

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CIRCUMSTANCES LEADING TO THE ACCIDENT - PARTICIPANT'S / INSURED'S VERSION

Our interview with the Insured / Insured Driver revealed that on Sunday, 1st January 2023, at about 12.00am,

*We have interviewed and recorded a statement from **Participant Driver/ Insured Driver** and the same is attached herewith for your perusal. A copy of his statement is enclosed as **Appendix B**.*

CIRCUMSTANCES OF THE ACCIDENT - THIRD PARTY RIDER'S VERSION

The third party rider disclosed that on the aforementioned date and time.....

[illegible]

DESCRIPTION OF THE SITE OF ACCIDENT

Site of Accident	:	
Type of Road	:	Macadamized / Bi-Directional / Single carriageway with one (1) lane on both direction
Gradient	:	Level / Uphill / Downhill /Gravel
Central Demarcation	:	Centre divider separating each carriageway and single intermittent white line separating each lane.
Description of both sides of road as one view from Insured's direction of travel:-	:	Right side: Tarred and pavement followed by trees. Left side: Tarred and drain followed by trees.
View from both directions	:	
Visibility	:	
Weather condition at time of accident	:	Raining / Said to be fine
Occupation of the surrounding area	:	Residential area / Industrial area / Commercial area
Condition of road surface	:	Well maintained and the road surface was reportedly dry at the material time of accident.
Speed limit / Other road traffic signs	:	None sighted in the said vicinity / 110km/j
Alteration to the road from date of accident	:	No alteration
Lighting facilities	:	Street lights erected at regular intervals of the aforesaid road. / Not applicable as the accident under review had occurred during daylight.

For a better perspective of the scene of accident, please refer to our photos and sketch of the accident.

PHOTOS OF THE SITE OF THE ACCIDENT

*(Travel direction of the **Participant's / Insured's vehicle**)*

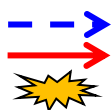
General view of the site as one faces the direction towards.....

Scene photographs minimum required 4 angles

*(Travel direction of the **Third party's vehicle**)*

General view of the site as one faces the direction towards.....

Scene photographs minimum required 4 angles

KEYS

Broken Blue arrow indicates travel direction of Participant / Insured vehicle

Solid Red arrow indicates travel direction of third party vehicle

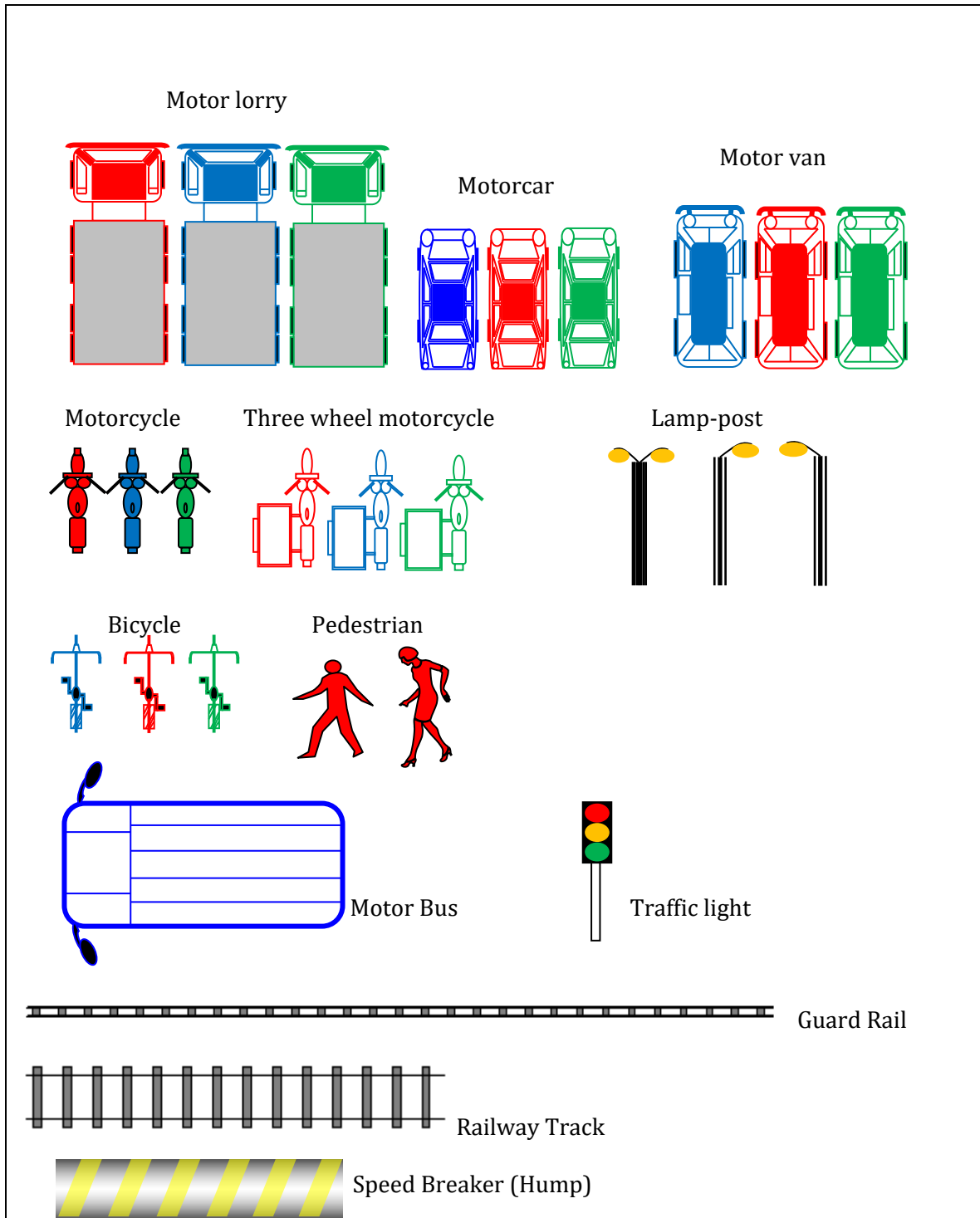
Marks approximate spot of collision.

The Photos was captured on the incident day by Third Party rider / Insured Driver / Witness (If any)

Photographs

Photographs

SKETCH PLAN (NOT DRAWN TO SCALE) ON THE MANNER IN WHICH THE ACCIDENT OCCURRED INVOLVING VEHICLE NO. ABC 1234 AND DEF 4567



POLICE INVESTIGATION / FINDINGS

The police reports pertaining to the accident were lodged at **Kuala Lumpur** Traffic police station with details as follows:-

Police Station :
Report No :
Lodged by : **Name – Participant Driver/ Insured Driver**
Date & Time :

The Participant / Insured driver had reported the matter one day after the accident. There is late reporting of the matter to the police authorities.

Police Station :
Report No :
Lodged by : **Name – Third Party Rider**
Date & Time :

The Third Party rider had reported the matter on the same day after the accident. There is no late reporting of the matter to the police authorities.

The Third party had reported the matter 04 days after the accident. There is late reporting of the matter to the police authorities as the third party alleged he lodged the report after fully rested.

Police Station :
Report No :
Lodged by : **Name – Witness / 999 (If any)**
Date & Time :

The witness had reported the matter on the same day after the accident. There is no late reporting of the matter to the police authorities.

INVESTIGATION OFFICER : **Sergeant (R123456)**

POLICE FINDINGS : **The Insured Driver / Participant Driver has been compounded under section Rule 3 (2) (b) LN 166/59 and fined a maximum fine of RM 300.00 for the offence**

Note: - **Certified copies of the inter-related police reports, police sketch plan/key, police photos and the official police letter on the outcome of investigation are attached herein as Appendix C.**

PARTICULARS OF THE THIRD-PARTY RIDER**Name** :**AGE** (*at the material time of accident*) :**NRIC No.** :**Marital Status** :**Address** :**Contact No.** :**Occupation** (*at the material time of accident*) :**Name of Employment** (*at the material time of accident*) :**Monthly Income** :**EPF & SOSCO** :**Present Occupation** :**Present Employer** :**Present Income** :**Driving License** :**Validity** :**Classes** :

Photos of the Third party rider's NRIC and Driving License

Front portion of NRIC and Driving License	Rear portion of NRIC and Driving License
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THIRD PARTY RIDER'S INJURIES SUSTAINED / TREATMENT RECEIVED

Injuries sustained : 1.
2.
3.
4.

Hospitalization :

Admission And Discharge Date :

Medical Leave :

Medical Fees :

Mode of Payment / By who :

Medical Follow Up :

Traditional Treatment :

Period Of Disablement :

Other Medical Benefit :

Present Complaints :

Our Observation :

Date Resumed Work :

Photos of Third party Rider

Full view of Third Party Rider

Photos of Third party rider's Injuries / Medical leave chits / Etc.

Elaborate and circle the injuries (Ex: Abrasion on his both elbows)	Elaborate and circle the injuries (Ex: Abrasion on his right knee)
Photos of Third party rider's MC	Photos of Third party rider's MC
Follow up Cards (Hospital)	Follow up Cards (Hospital)

PARTICULARS OF THE THIRD-PARTY PILLION RIDER**Name** :**AGE (at the material time of accident)** :**NRIC No.** :**Marital Status** :**Address** :**Contact No.** :**Occupation (at the material time of accident)** :**Name of Employment (at the material time of accident)** :**Monthly Income** :**EPF & SOSCO** :**Present Occupation** :**Present Employer** :**Present Income** :**Photos of the Third party Pillion rider's NRIC**

Front portion of NRIC	Rear portion of NRIC
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THIRD PARTY PILLION RIDER'S INJURIES SUSTAINED / TREATMENT RECEIVED

Injuries sustained : 1.
2.
3.
4.

Hospitalization :

Admission And Discharge Date :

Medical Leave :

Medical Fees :

Mode of Payment / By who :

Medical Follow Up :

Traditional Treatment :

Period Of Disablement :

Other Medical Benefit :

Present Complaints :

Our Observation :

Date Resumed Work :

Photo/s of Third party Pillion Rider

Full view of Third Party Pillion Rider

Photoss of Third party Pillion rider's Injuries / Medical leave chits / Etc.

Elaborate and circle the injuries (Ex: Abrasion on his both elbows)	Elaborate and circle the injuries (Ex: Abrasion on his right knee)
Photos of Third party rider's MC	Photos of Third party rider's MC
Details in Hospital Admission Book Please add boxes if there are multiple pages Follow up Cards (Hospital)	Details in Hospital Admission Book Please add boxes if there are multiple pages Follow up Cards (Hospital)

PARTICULARS OF THE THIRD-PARTY RIDER (DECEASED)

Name :

NRIC Number :

Age (*at the material time of accident*) :

Address :

Marital Status :

Hand phone Number :

Driving License Number :

Classes :

Driving License Validity :

Endorsement :

Occupation (*At the time of the accident*) :

Name of Employment (*At the time of the accident*) :

Cause of Death :

Day, Date & Time of Death :

Place of Death :

Post Mortem / Autopsy Report :

The copies of the Third Party deceased's death certificate are enclosed herewith under **Appendix D**.

Photos of the Third party Deceased's NRIC and Driving License (*If any*)

Front portion of NRIC and Driving License	Rear portion of NRIC and Driving License
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PARTICULARS OF NEXT OF KIN / DEPENDENCY ASPECTS**• THIRD PARTY DECEASED'S WIFE**

Name :

NRIC No :

Age (*at the material time of accident*) :

Address :

Occupation :

Name of Employment :

Monthly Income :

Contact No. :

NRIC of Third Party Deceased's wife

Front portion of NRIC	Rear portion of NRIC
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Photos of Third Party Deceased's Wife

Full view of Third Party Deceased's Wife
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- **THIRD PARTY DECEASED'S CHILDREN**

Name :

NRIC No :

Age (at the material time of accident) :

Address :

Occupation :

Name of Employment :

Monthly Income :

Current Status :

NRIC of Third Party Deceased's Daughter / Son

Front portion of NRIC	Rear portion of NRIC
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Photos of Third Party Deceased's Daughter / Son

Full view of Third Party Deceased's Wife
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The copies of the Third Party deceased's marriage certificate and dependency (daughter / son) birth certificate provided by deceased's wife are enclosed herewith under **Appendix E**.

PARTICULARS OF THIRD PARTY'S VEHICLE**Vehicle and Ownership Details**

Registered Owner & Address : Mohamad Hafiz Bin Ramzan
No. 10142, Pekan Baru, Telok Air Tawar,
13050 Pulau Pinang.

Type of Vehicle : Motorcycle

Year / Make / Model : A 2020 motorcycle model Yamaha Y15ZR

Registration Number : PPF 7814

Insurance Company : Zurich General Insurance Berhad

Policy Number : D14250-20001360

Period of Coverage : 06/02/2020 to 05/02/2021

OD / TPPD claim made : Not advised

A copy of the JPJ search extract on the Third party's vehicle is enclosed under **Appendix F.**

PARTICULARS OF THIRD PRATY'S SOLICITORS

Name : Messrs. N. Shyama & Co

Address : No. 7078, 1st Floor, Jalan Kampung Gajah,
12200 Butterworth, Pulau Pinang.

Telephone No. : 04-3236832

Reference No. : SN/ACC/104/2021

DAMAGES TO THE VEHICLES & CONSISTENCY OF DAMAGE

- DAMAGES TO THE PARTICIPANT'S / INSURED'S MOTORCAR**

EXAMPLE: Based on the police photos as well as our confirmation with the Participant / Insured, the damages to the insured/covered motorcar were noted to its rear left section i.e. bumper, tail lamp, sport rim, arm mudguard and tire. He/she has intimated an Own Damage claim to repair the damages and the insured/covered motorcar has been fully repaired at Leong Sheng Workshop Sdn Bhd which is located at Johor Bharu, Johor.

Photos of the Insured/Covered motorcar – duly repaired

Minimum requirement - 4 angles	Minimum requirement - 4 angles
Minimum requirement - 4 angles	Minimum requirement - 4 angles

- DAMAGES TO THE THIRD PARTY'S MOTORCYCLE**

EXAMPLE: According to the third party rider the damages to the third party motorcycle were noted more to its front portion i.e. front headlight, rim, mudguard, fork and front cover set. He added that he had repaired the motorcycle at his own cost of about RM 700.00. However, he could not produce the repair bill on our request as it had already been given to his solicitor on record.

Photos of the third party motorcycle – duly repaired

Minimum requirement - 4 angles	Minimum requirement - 4 angles
Minimum requirement - 4 angles	Minimum requirement - 4 angles

- CONSISTENCY OF DAMAGES**

The damages sustained by the Insured's motorcar and the Third Party motorcycle appear to be consistent with the nature and circumstances of the incident.

Or

Please elaborate if you discover any inconsistencies in the vehicle's damage.

INVESTIGATION REMARKS

- SITE ENQUIRIES AT THE SCENE OF ACCIDENT**

Minimum 2-4 site enquiries required and must attached the discreet photographs in the report.

We proceeded to the site of the accident and found that the accident had occurred at the crossroad traffic lights junction. We were unable to conduct a site enquiry as there were no nearby residential or commercial buildings.

- INDEPENDENT WITNESS**

We were unable to locate any independent witness to the accident. Neither do the police have any on record.

OR

Our investigation revealed that there was an independent witness - details as follows:

PARTICULARS OF WITNESS

Name	:
AGE (at the material time of accident)	:
NRIC No.	:
Marital Status	:
Address	:
Contact No.	:

WITNESS'S VERSION

Our interview with the Witness revealed the following:-

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.....

.....

We have interviewed and recorded the statement from the Witness. A reproduced copy is in enclosed in **Appendix G**.

- **EMPLOYMENT VERIFICATION OF THE THIRD PARTY**

Visit the third-party employer to check his earnings, position, length of service, and other details.

- **VERIFICATION WITH THE HOSPITAL**

1. To check the date and time of arrival of third party rider with the enquiries department.
2. To check how the third-party rider was transported to the hospital.

- **CHECKING IN SOCIAL MEDIA/PAPER CUTTING**

Our checking with the available social media and news portals revealed that no news about this accident carried over to such media and news portals.

- **DASHCAM RECORDING**

We gathered from the Participant / Insured that the insured/covered vehicle was not fitted with any dashcam similarly, we also enquired with the police, and they confirmed that there was no such dashcam recording provided by any independent party about this accident matter.

CONCLUSION / LIABILITY

Having probed into the circumstances relating to the accident and our findings with the authorities, we wish to advise that we are unable to trace any element of fraud in this claim. From the facts adduced, we are satisfied that the accident is a genuine incident and no foul play is suspected.

In so far as liability is concerned, the Participant driver has to bear the greater blame in this occasion. We are of the view that he/she should have been more careful and kept a proper look-out on the vehicles approaching before proceeding to enter into the main road.

Our view is supported by the police findings, which reveals that the Participant driver has been compounded under Rule 10 LN 166/59 for his/her negligent driving/riding which had mainly contributed to the accident under review.

The above information, captions, attachments, extracts and documents contained therein and attached with this report were secured on a Without Prejudice basis and is purely intended for the consumption of insurers in their decision making for purposes of settlement of claim involving the above accident which was investigated.

Having completed the assignment as required, we submit the above for your kind attention.

Thank you

Yours faithfully,

Sivakumar
MAHURA SERVICES SDN BHD (868307-H)
Tel : 03-2276 2779
Fax : 03-2276 3779
Email : info@mahurakl.com

Enclosures: -

No	Appendix	Item
1.	A	
2.	B	
3.	C	
4.	D	
5.	E	
6.	F	
7.		Our Fee Note